

Sh. B.L. Kantroo v. BSES Rajdhani Power Ltd.

RFA (OS) No. 12/2008 (Delhi HC, DB)

High Court of Delhi (HC-DB) | 2008-09-25 | Bench: A.K. Sikri J, Manmohan Singh J (2) | IK doc 75630952 | HC-006 | schema 1.0

In an electricity-theft (Section 135) case, a civil suit challenging the theft bill / civil liability is impliedly barred — the remedy lies before the Special Court under Sections 153–154(5); Section 145's express bar covers only Section 126/127 (assessment) matters.

GOOD-LAW as of 2026-07 · provision-version OK: True

jurisdiction (§145/§154): good-law; consistent with the later SC in Anis Ahmad (2013) on ouster of alternative fora and with the Section 153–154 Special-Court scheme.

Not overruled or reversed. The court's para-16 reference to a '3 months' presumption reflects the pre-2007 text and does not affect the jurisdiction ratio.

FACTS & PROFILE

A charitable hospital's commercial connection was inspected (16/06/2007) and booked for direct theft (two wires tapping the BSES LV mains); a theft bill of Rs 34,23,386 and speaking orders followed, and a Special Court complaint was pending. Its civil suit for a declaration that the bill was false and an injunction against disconnection was rejected as barred; it appealed.

Procedural posture	Regular First Appeal (RFA (OS)) against rejection of the plaint under Order VII rr. 10–11 CPC
Outcome for	licensee
Relief granted	No relief to the appellant; suit held not maintainable; consumer relegated to the Special Court / statutory remedy.
Consumer category	commercial (charitable hospital)
Fact-pattern	direct-hook/bypass (tapping LV mains), theft-by-tapping, excess-load-alleged, Special-Court-complaint-pending
State	Delhi (NCT)
DISCOM / party	BSES Rajdhani Power Ltd.
Statutory version	post-2007 (Act 26 of 2007) — quotes Section 127(2) 'half' pre-deposit; note the court also recites the pre-2007 '3 months' presumption in para 16

Disposition: Appeal dismissed; the plaint was rightly rejected — though for different reasons than the Single Judge gave (civil court impliedly ousted by Sections 153–154 in theft cases, not by Section 126/145).

ISSUES FRAMED

- whether the concerned matter falls within the jurisdiction of the assessing officer under Section 126 of the Act or not
- whether maintainability of such proceeding at the instance of the consumer as discussed above necessarily excludes the jurisdiction of Civil Court

INTERPRETATION OF THE ELECTRICITY ACT

s.145 ratio post-2007 jurisdiction-ouster-scope

jurisdiction (§145/§154)

Section 145's express bar on civil-court jurisdiction operates only in respect of Section 126 (assessment) and Section 127 (appeal) matters — not theft under Section 135.

“A perusal of Section 145 would show that this Section operates only in respect of Section 126 and 127 of the Electricity Act.”

— para 16

s.126 explanatory post-2007 distinguished-from-135

§126 vs §135

Section 126 excludes mens rea and fastens civil liability; unauthorised use of electricity is different from theft, which is a criminal offence under Section 135.

“Section 126 excludes mens rea and is provided for the purpose of fastening civil liability. Unauthorized use of electricity is different from theft cases of electricity.”

— para 15

s.154(5) ratio post-2007 jurisdiction-forum

jurisdiction (§145/§154)

Section 154(5) invests the Special Court with jurisdiction to determine the quantum of civil liability in theft cases; a consumer disputing a theft bill must challenge it before the Special Court, even where no criminal complaint has been filed.

“the provisions of sub-section (5) of section 154 specifically invest Special Court with the jurisdiction to determine any dispute regarding the quantum of civil liability in theft cases”

— para 22

s.153/s.154 ratio post-2007 implied-ouster

jurisdiction (§145/§154)

Any dispute about civil liability in theft cases is impliedly excluded from the jurisdiction of the civil court by Sections 153 and 154, under which the Special Court determines such liability (acting as both civil and criminal court).

“any dispute about civil liability in theft cases is impliedly excluded from the jurisdiction of civil court in view of the provisions of Section 153 and 154 of the Act”

— para 30

s.145 ratio post-2007 complete-code-implied-bar

jurisdiction (§145/§154)

The Electricity Act is a complete code; the civil court's jurisdiction is by necessary implication barred, and a consumer cannot approach a civil court without exhausting the alternative remedies the Act provides.

“The scheme of the Electricity Act is complete in itself and thereby the jurisdiction of the civil court to take cognizance of the cases under the Act, by necessary implication, stood barred.”

— para 28

AUTHORITIES CITED

Sohan Lal v. North Delhi Power Ltd. 113 (2004) DLT 547 · Delhi High Court (SB, S.K. Kaul J)

followed

Cited for: Section 126 (unauthorised use) and Section 135 (theft) are separate expressions with their own connotations; theft has a dual requirement — a dishonest act plus one of the specified acts in Section 135(1).

“There is dual requirement. Firstly, the act should be done dishonestly. Secondly, it should form part of one of the acts specified in Sub-para (a) to (c) of Sub-section (1) of Section 135 of the said Act.”

— as quoted in the judgment

“This distinction has been made out in a case decided by the High Court of Delhi in *Sohan Lal vs. North Delhi Power Ltd.*”

— the Court’s own treatment

Dhulabhai v. State of Madhya Pradesh AIR 1969 SC 78 · Supreme Court

followed

Cited for: The classic seven propositions on when a statute ousts civil-court jurisdiction — including that finality plus an adequate remedy excludes the civil court, save for non-compliance with the Act or breach of fundamental judicial procedure.

“Where the statute gives a finality to the orders of the special tribunals the civil courts jurisdiction must be held to be excluded if there is adequate remedy to do what the civil courts would normally do in a suit.”

— as quoted in the judgment

“The relevant principles regarding ouster of jurisdiction of Civil Court were laid down by the Apex Court in *Dhulabhai v. State of MP*”

— the Court’s own treatment

Secretary of State v. Mask & Co. AIR 1940 PC 105 · Privy Council

followed

Cited for: Even where jurisdiction is excluded, civil courts may examine cases where the Act's provisions have not been complied with or the statutory tribunal has not conformed to fundamental judicial procedure.

“even if jurisdiction is so excluded, the Civil Courts have jurisdiction to examine into cases where the provisions of the Act have not been complied with, or the statutory tribunal has not acted in conformity with the fundamental principle of judicial procedure”

— as quoted in the judgment

Shiv Kumar Chadha v. MCD JT 1993 (3) SC 238 · Supreme Court

referred

Cited for: A civil suit lies where the order is a nullity in law for a jurisdictional error or is outside the Act.

(unnamed authority) (1997) 5 SCC 120 · Supreme Court

referred

Cited for: A civil court has no jurisdiction to entertain a suit for declaration and injunction against a specially constituted forum.

RATIO & WHAT WAS DECIDED

jurisdiction (§145/§154)

HC-DB-binding (Delhi)

settles-explains

In an electricity-theft case, the civil court's jurisdiction to entertain a suit challenging the theft bill / civil liability is impliedly ousted by Sections 153–154 (Special Court), even where no criminal complaint is filed; Section 145's express bar is confined to Section 126/127 assessment matters. The plaintiff was rightly rejected, though for different reasons than the Single Judge gave.

Applies the Dhulabhai ouster test; complements the later SC ruling in Anis Ahmad on consumer fora.

§126 vs §135

HC-DB-binding (Delhi)

affirms

Section 126 (unauthorised use — civil, no mens rea) and Section 135 (theft — criminal, dishonesty) operate in different fields.

SIGNIFICANCE

A leading Delhi Division-Bench authority on forum/jurisdiction in electricity disputes: it distinguishes Section 145's express bar (confined to Section 126/127) from the implied ouster of civil courts in theft cases under Sections 153–154, holding that a consumer must take a disputed theft bill to the Special Court. Cited 110 times; it complements Anis Ahmad (consumer fora) on the civil-suit side, applying the Dhulabhai ouster principles.

FLAGS

leading-on-jurisdiction-145-154 (civil-suit side)

complements-Anis-Ahmad (consumer-forum side)

applies-Dhulabhai-ouster-test

follows-Sohan-Lal on 126v135

court-recites-pre-2007-3-month-presumption (para 16 slip)

BSES-Delhi

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